

		On May 28, 2026, Attorney Konrad sent meet and confer correspondence via e-mail to Plaintiffs’ counsel, requesting Plaintiffs’ to provide availability by June 4, 2026 for the deposition to go forward on or before June 26, 2026. (Id.¶6). On June 4, 2026 around 6:30 p.m., Plaintiffs’ counsel advised that Plaintiffs were available for deposition on July 31, 2026. (Id.¶8.) At that time, the discovery cut off was August 8, 2026. This motion was filed 6/9/2026. (ROA 92) Here, Plaintiff clearly has the burden to establish that its objection to the Deposition notice has merit. Plaintiff has not sustained that burden, nor has he established how offering one date, two months after the original deposition date, and 9 days before the discovery cut off date, was a reasonable compromise. Based on applicable law and the facts herein, the Motion is GRANTED and Plaintiff Manuel Lara is ordered to appear at his deposition on the date agreed to by the parties- currently September 17, 2026 (or on another mutually agreed upon date within the next 14 days). No sanctions were requested. Clerk to give notice to Defendant(s) and Defendant(s) to give notice to all other parties.
16.	30-2025-01463753 Zannitto vs. Ford Motor Company	1. Motion for Summary Judgment and/or Adjudication Defendants Ford Motor Company and Ken Grody Ford Buena Park (“Defendants”) move for summary judgment or adjudication as to all six causes of action alleged in the Complaint, which include the: (1) first cause of action for violation of Civil Code section 1793.2(d) against Defendant Ford, (2) second cause of action for violation of Civil Code section 1793.2(b) against Defendant Ford, (3) third cause of action for violation of Civil Code section 1793.2(a)(3) against Defendant Ford, (4) fourth cause of action for breach of implied warranty of merchantability pursuant to Civil Code section 1791.1, 1794, and 1795.5 against Defendant Ford, (5) fifth cause of action for negligent repair against Defendant Ken Grody, and (6) sixth cause of action for fraudulent inducement – concealment against Defendant Ford. Plaintiffs Frank Zannitto and Sharon Zannitto (“Plaintiffs”) oppose the motion. Defendants present 8 issues in the motion. The Court will address each issue. 1. FIRST CAUSE OF ACTION: VIOLATION OF CIVIL CODE SECTION 1793.2(D) AGAINST DEFENDANT FORD Plaintiffs’ first cause of action is for violation of Civil Code section 1793.2(d). The first cause of action is only alleged against Defendant Ford. Defendants argues that Plaintiffs cannot establish their first cause of action for violation of Civil Code section 1793.2(d) because they cannot bring claims against Defendant Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle. Defendant cites to <i>Rodriguez v. FCA US, LLC</i> (2024) 17 Cal.5th 189 in support of the argument that Plaintiffs cannot establish their first cause of action for violation of Civil Code section 1793.2(d) because they cannot bring claims against Defendant Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

The Court agrees.

The primary holding in *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189 is that “a motor vehicle purchased with an unexpired manufacturer’s new car warranty does not qualify as a ‘motor vehicle sold with a manufacturer’s new car warranty’ under section 1793.22, subdivision (e)(2) ’s definition of ‘new motor vehicle’ unless the new car warranty was issued with the sale.” (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 196 [underline added].) The court held that “the phrase ‘other motor vehicle sold with a manufacturer’s new car warranty’ — considered in the context of the surrounding text of section 1793.22, subdivision (e)(2) and in the broader context of the Song-Beverly Act’s provisions distinguishing between new and used goods — means a vehicle for which a manufacturer’s new car warranty is issued with the sale.” (*Id.*, at 206 [emphasis added].)

Thus, to be considered a new motor vehicle under the Act, a “new car” warranty must have been “*issued with the sale*” of the vehicle. (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 198 [emphasis in original] and 199-200 [“the phrase ‘other motor vehicle sold with a manufacturer’s new car warranty’ is most naturally understood to mean other vehicles for which such a warranty is issued with the sale. (§ 1793.22, subd. (e)(2).)”].)

In issuing a “new car” warranty to a vehicle that is not technically new, “manufacturers (or their dealer-representatives) treat them as such upon sale by providing the same type of manufacturer’s warranty that accompany new cars.” (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 198 [citing *Rodriguez v. FCA US, LLC* (2022) 77 Cal.App.5th 209, 220, *aff’d* (2024) 17 Cal.5th 189].)

“For new products, liability extends to the manufacturer; for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good.” (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 202.) “In both cases, the Act’s protections are premised on an express warranty arising from the product’s sale.” (*Ibid.*)

Here, Defendant establishes and Plaintiffs agree that the vehicle at issue had 31,516 miles on its odometer at the time of purchase. The parties also agree that the distributor Defendant Ken Grody Ford sold the vehicle to Plaintiffs as a “certified pre-owned” vehicle.

The parties disagree, however, about whether the warranties that accompany Plaintiffs’ vehicle qualify the vehicle for recourse pursuant to the Song Beverly Act. Plaintiffs argue that “Ford represented that its Blue Advantage certified vehicles carry manufacturer-issued warranty coverage, including a powertrain limited warranty of seven years or 100,000 miles, coverage still in force, on its face, when Ford authorized both repairs at issue. (PAMF 30; Flores Decl. ¶ 11, Ex. H.)”

The Court is not persuaded by Plaintiffs’ argument. *Rodriguez* expressly holds that a “new car” warranty must accompany the used vehicle at the time of the sale. Plaintiffs proffer no evidence that they were given “the same type of manufacturer’s warranty that accompany new cars.” (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 198 [citing *Rodriguez v. FCA US, LLC* (2022) 77 Cal.App.5th 209, 220, *aff’d* (2024) 17 Cal.5th 189].)

As Defendant points out, other Courts have adopted this interpretation of the holding in *Rodriguez*. For example, in *Crescencio v. Ford Motor Company* (C.D. Cal. 2025) 811 F.Supp.3d 1132, the court rejected the argument that certified preowned warranties constitute “a new car warranty” such that a plaintiff may recover under the Song Beverly Act based on the certified preowned warranties provided. (*Id.* at 1138 [citing *Dubrosky v. Am. Honda Motor Co.*, No. CV 24-09153-HDV (ASx), 2025 WL 2451031, at *9 (C.D. Cal. Aug. 13, 2025) (dismissing SBA claim because “Plaintiffs fail to

adduce any authority indicating that a certified pre-owned warranty constitutes “a *new* car warranty” (emphasis in the original)); *In re Coordination Proceeding Special Title Rule 3.550 Ford Motor Warranty Cases*, 2025 WL 1422438, at *2–3, 2025 Cal. Super. LEXIS 9146, at *7 (May 14, 2025) (sustaining demurrer as to CPO warranty theory because “[t]o qualify as a “new motor vehicle,” the manufacturer must have issued, as part of the sale, the manufacturer’s new-car warranty, not a “new” warranty on a used car.”)]; see also *Huerta v. General Motors* (C.D. Cal., Mar. 16, 2026, No. CV 25-7535-MWF (RAOX)) 2026 WL 789952, at *2 [“Song-Beverly Act’s express warranty provisions do not apply to used vehicles.”].)

Plaintiffs have not established that they received a new car warranty for their certified preowned vehicle. Rather, the evidence Plaintiff submitted in opposition, particularly Exhibit H, establishes that the warranties granted under the Ford Blue Advantage are different than those granted to new vehicles. In fact, in Exhibit H, Ford’s website expressly states “[t]he primary differences between Gold and Blue Certified used vehicles are age and mileage . . . Gold vehicles are up to 6 years old with less than 80,000 miles. Blue vehicles are up to 10 years old with less than 120,000 miles. As the charts show, the warranty coverages differ, but there are many similar ownership benefits.”

In opposition, Plaintiffs cite to *Kiluk v. Mercedes-Benz USA LLC* (2019) 43 Cal.App.5th 334. In *Kiluk*, “Mercedes Benz partnered with a dealership to sell used vehicles directly to the public by offering an express warranty as part of the sales package, which is a crucial incentive for buyers like plaintiff. By partnering with the dealership, Mercedes Benz stepped into the role of a retailer and was subject to the obligations of a retailer under section 1795.5. That section provides that a retailer's obligations are the ‘same’ as a manufacturer under section 1793.2.” (*Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, 340.)

Since *Kiluk*, however, California’s Supreme Court has found that used cars are not entitled to recovery under the Song-Beverly Act unless they are given “new car” warranties – not new warranties to a used car. Thus, under the facts of the current case, whether Ford took on the role of a retailer is irrelevant for this cause of action. The holding in *Kiluk*, therefore, does not impact this Court’s holding on the motion for summary judgment at hand.

Here, Defendant establishes that Plaintiffs did not receive a new car warranty at the time of purchase. As such, Plaintiffs’ vehicle is not a candidate for relief pursuant to this section of the Song Beverly Act.

Given the above, the Motion for Summary Adjudication is **GRANTED** as to the first cause of action for violation of Civil Code section 1793.2(d) because they cannot bring claims against Defendant Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

2. SECOND CAUSE OF ACTION: VIOLATION OF CIVIL CODE SECTION 1793.2(B) AGAINST DEFENDANT FORD

Plaintiffs’ second cause of action is for violation of Civil Code section 1793.2(b). The second cause of action is only alleged against Defendant Ford.

Defendants argue that Plaintiffs cannot establish their second cause of action for violation of Civil Code section 1793.2(b) because they cannot bring claims against Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

For the reasons discussed above and pursuant to *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, the Motion is **GRANTED** as to the second cause of action for violation of Civil Code section 1793.2(b)

3. THIRD CAUSE OF ACTION: VIOLATION OF CIVIL CODE SECTION 1793.2(A)(3) AGAINST DEFENDANT FORD

Plaintiffs’ third cause of action is for violation of Civil Code section 1793.2(a)(3). The third cause of action is only alleged against Defendant Ford.

Defendants argue that Plaintiffs cannot establish their third cause of action for violation of Civil Code section 1793.2(a)(3) because they cannot bring claims against Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

For the reasons discussed above and pursuant to *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, the Motion is **GRANTED** as to the third cause of action.

4. FOURTH CAUSE OF ACTION: BREACH OF IMPLIED WARRANTY OF MERCHANTABILITY PURSUANT TO CIVIL CODE SECTION 1791.1, 1794, AND 1795.5 AGAINST DEFENDANT FORD

Plaintiffs’ fourth cause of action is for breach of implied warranty of merchantability pursuant to Civil Code section 1791.1, 1794, and 1795.5. The fourth cause of action is only alleged against Defendant Ford.

Defendants argue that Plaintiffs cannot establish their fourth cause of action for breach of implied warranty of merchantability because they cannot bring claims against Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

The court in *Ruiz Nunez v. FCA US LLC* expressly held that “[i]t is evident from these [Song Beverly Act] provisions that only distributors or sellers of *used* goods—not manufacturers of *new* goods—have implied warranty obligations in the sale of *used* goods.” (*Ruiz Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399 [citing Civ. Code, § 1795.5].)

“As one court has put it, the Song-Beverly Act provides similar remedies (to those available when a manufacturer sells new consumer goods) ‘in the context of the sale of used goods, except that the manufacturer is generally off the hook.’ ” (*Ruiz Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399 [citing *Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, 339 (Song-Beverly Act “generally binds only distributors and retail sellers in the sale of used goods”)]). “[T]he assumption baked into section 1795.5 is that the manufacturer and the distributor/retailer are distinct entities.” (*Ibid.*) An exception arises “[w]here the manufacturer sells directly to the public . . . [and] takes on the role of a retailer.” (*Ibid.*)

Here, Plaintiffs did not buy the certified preowned vehicle from Ford, Ford did not sell the vehicle directly to Plaintiffs, and therefore Ford was not a party to the sale of the vehicle at issue. Rather, Plaintiffs purchased the vehicle from Ken Grody Ford Buena Park. Case law expressly establishes that only distributors or sellers of used goods have implied warranty obligations in the sale of a used good. Ford did not sell the vehicle to Plaintiff and therefore did not “take on the role of a retailer” in this transaction.

For the reasons discussed above and pursuant to *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, the Motion is **GRANTED** as to the fourth cause of action for breach of implied warranty of merchantability pursuant to Civil Code sections 1791.1, 1794, and 1795.5.

5. FIFTH CAUSE OF ACTION: NEGLIGENT REPAIR AGAINST DEFENDANT KEN GRODY

Plaintiffs' fifth cause of action is for negligent repair. The fifth cause of action is only alleged against Defendant Ken Grody.

Defendants argue that Plaintiffs cannot establish their fifth cause of action for negligent repair against Ken Grody Ford Buena Park because it is barred by the economic loss rule.

In *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, the court held:

“[U]nder the economic loss rule, tort recovery for breach of a contract duty is generally barred . . . unless two conditions are satisfied. A plaintiff must first demonstrate the defendant's injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant's conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 20-21; see also *Jimenez v. Superior Court* (2002) 29 Cal.4th 473, 482-83; and *Seely v. White Motor Co.* (1965) 63 Cal.2d 9, 17-19.)

“To apply the economic loss rule, we must first determine what the product at issue is. Only then do we find out whether the injury is to the product itself (for which recovery is barred by the economic loss rule) or to property other than the defective product (for which plaintiffs may recover in tort).” (*Jimenez v. Superior Court* (2002) 29 Cal.4th 473, 483.)

Importantly, the economic loss rule “applies to bar tort recovery for negligently inflicted economic losses unaccompanied by physical or property damage under the limits recognized in *Sheen*.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 38.)

Here, Plaintiffs only allege that Defendant Ken Grody “breached its duty to Plaintiffs to use ordinary care and skill by failing to properly store, prepare and repair the Subject Vehicle in accordance with industry standards.” (Complaint, ¶ 61.) Plaintiffs allege that they presented their vehicle “to an authorized repair facility for a nonconformity.” (Complaint, ¶ 17.)

Plaintiffs do not allege any property damage to the vehicle that did not already exist at the time that the vehicle was presented to Defendant for repair. Accordingly, Plaintiffs do not allege that Defendant Ken Grody's conduct in attempting to repair the vehicle caused the injury to the vehicle.

Rather the allegations and the evidence before the Court establish that Plaintiffs presented the allegedly defective vehicle to Defendant Ken Grody and Defendant Ken Grody was unable to repair the alleged defect (the defect that existed before the repair attempts and not because of the repair attempts). No where does Plaintiff allege or establish that the repair attempts *caused* the injury to property.

As such, the economic loss rule applies to Plaintiff's fifth cause of action for negligent repair. The Motion for Summary Judgment is **GRANTED** as to the fifth cause of action for negligent repair.

6. SIXTH CAUSE OF ACTION: FRAUDULENT INDUCEMENT – CONCEALMENT AGAINST DEFENDANT FORD

Plaintiffs’ sixth cause of action is for fraudulent inducement – concealment. The sixth cause of action is only alleged against Defendant Ford.

Defendants argue that (1) Plaintiffs cannot establish their sixth cause of action for fraudulent inducement – concealment because they cannot establish that Defendant Ford had knowledge of a defect at the time of sale, (2) Plaintiffs cannot establish their sixth cause of action for fraudulent inducement – concealment because they cannot establish that Defendant Ford had any transactional relationship triggering any duty to disclose a known defect at the time of sale, and/or (3) Plaintiffs cannot establish their sixth cause of action for fraudulent inducement – concealment because they cannot establish an independent tort duty to except it from the economic loss rule.

The Court finds that the sixth cause of action for fraudulent inducement – concealment fails because Defendant Ford did not have a duty to disclose. The Court need not address the merits of the other issues and arguments presented by Defendant.

“The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40; see also *Lazar v. Superior Court* (1996) 12 Cal 4th 631, 638.)

“A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff’s fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment).” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40.)

“Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as “between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40.)

“All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 41 [citing *LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 337].) “Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 41 [citing *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 312].)

Here, the evidence before the Court establishes that Plaintiffs and Defendants did not have a “preexisting relationship” that created a duty for Defendant to disclose the alleged nonconformity or defect the Plaintiffs. The evidence establishes that Defendant was not a party to the contract and was not the entity that sold the vehicle to Plaintiffs. Case law expressly states that such a duty to disclose

		does not exists between a defendant and the public at large. For had no direct dealings with Plaintiffs. Given these facts and the case law above, there was no transactional relationship between Plaintiffs and Defendant that created a duty to disclose.
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		As such, the Motion for Summary Judgment or Adjudication is GRANTED as to the sixth cause of action for fraudulent inducement – concealment.
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		Moving party to give notice.
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